

SENATE No. 1522

The Commonwealth of Massachusetts

PRESENTED BY:***Lydia Edwards***

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting patient safety and equitable access to care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	
<i>Adam Gómez</i>	<i>Hampden</i>	<i>3/5/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/5/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/5/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>3/5/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/5/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/5/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/5/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>3/12/2025</i>

SENATE No. 1522

By Ms. Edwards, a petition (accompanied by bill, Senate, No. 1522) of Lydia Edwards, Adam Gomez, Susannah M. Whipps, James B. Eldridge and other members of the General Court for legislation to promote patient safety and equitable access to care. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1361 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting patient safety and equitable access to care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 111 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting before the definition of “Board of health” the
3 following 2 definitions:-

4 “Hospital”, any hospital or psychiatric hospital providing inpatient care 24 hours per day,
5 7 days a week and including the teaching Hospital of the University of Massachusetts Medical
6 School.

7 “Maternal Child Care Patients”, including antepartum, intrapartum, postpartum, and
8 neonatal care.

SECTION 2. Said chapter 111 is hereby further amended by inserting after section 231 the following section:-

Section 231A. (a) There shall be a specific statewide limit on the number of patients a registered nurse shall be assigned to provide care for at 1 time, which shall be established under regulations promulgated by the department of public health, along with the department of mental health. The limit established by the department shall apply to hospitals.

This limit of patients shall be specific to each hospital unit and in effect at all times for each of the patient care areas, including, but not limited to, emergency services departments and units with step-down or intermediate care patients, post-anesthesia care patients, operating room patients, maternal child care patients, pediatric patients, psychiatric patients, medical, surgical and telemetry patients, observational and outpatient treatment patients, rehabilitation patients and any unit not otherwise listed.

(b) The limits established by the department shall not include a minimum number of patients assigned to a registered nurse at 1 time. Additional staff shall be assigned in accordance with nursing care requirements, including the severity of the illness, the need for specialized equipment and technology, the complexity of clinical judgment needed to design, implement and evaluate the patient care plan and the ability for self-care and the licensure of the personnel required for care.

(c) Prior to promulgating regulations, the department shall hold a series of public hearings throughout the commonwealth and invite comments from stakeholders.

(d) The regulations shall include mechanisms for enforcement of the limits by the attorney general, which shall include, but not be limited to, injunctive or declaratory relief and civil penalties in the amount of up to \$25,000 per violation.

(e) Each day during which a violation continues following notice to the facility of such violation shall constitute a separate and distinct violation subject to any penalties established pursuant to subsection (d).

(f) Upon written notice by the department that a complaint has been made or a violation has occurred, a facility receiving such notice shall submit a written compliance plan to the department that demonstrates the manner in which the facility will ensure future compliance with all of the provisions of this act within the time frame required by the department.

(g) No employee shall be disciplined or retaliated against in any manner for complying with the patient limits set forth by the regulations established and any such employee so disciplined or retaliated against shall be entitled to the remedies under subsection (d) of section 185 of chapter 149 of the General Laws regardless of whether the employee satisfies any other terms or conditions set forth in said section 185 of said chapter 149.

(h) The regulations promulgated pursuant to this act shall provide for suspension during a state or national public health emergency.

SECTION 3. The department of public health shall promulgate regulations pursuant to section 231A of chapter 111 of the General Laws not later than 24 months after the passage of this act.